

Criticism of OrderYOYO's handling of requests for access and deletion

Date: 27-03-2023

Decision

Private companies

Criticism

Complaint

Right to access

Right to deletion

Exercise of rights

The Danish Data Protection Agency has expressed criticism that OrderYOYO mistakenly responded to a request for access and deletion too late, and only complied with the requests after the Data Protection Agency intervened in the case.

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Summary

The Data Protection Agency has made a decision in a case where the complainant used the ordering platform OrderYOYO to order food from a local restaurant but interrupted the purchase before payment took place. The complainant subsequently received a series of marketing emails sent by OrderYOYO A/S on behalf of the restaurant in question. The complainant therefore sent a request for access and deletion to OrderYOYO. After waiting for more than two months to gain access, the complainant contacted the Data Protection Agency.

Immediately after receiving the complainant's access request, OrderYOYO began processing the request but became aware, upon the Data Protection Agency's inquiry, that the response had mistakenly not been sent to the complainant. OrderYOYO then sent the response to the access request to the complainant.

In its decision, the Data Protection Agency emphasized that the complainant's request for access was only answered in connection with the Data Protection Agency's handling of the case, and thus only five months after the complainant had requested access from OrderYOYO. On this basis, the Data Protection Agency expressed criticism that OrderYOYO's handling of the complainant's request for access and deletion did not occur within the framework of the rules in the General Data Protection Regulation.

Decision

The Data Protection Agency hereby returns to the case where the complainant on October 22, 2021, complained to the Agency that OrderYOYO A/S had not responded to his request for access and deletion.

1. Decision

After reviewing the case, the Data Protection Agency finds that there is grounds for expressing criticism that OrderYOYO A/S's handling of the complainant's request for access and deletion did not occur in accordance with the rules in the General Data Protection Regulation's [1] Article 12, paragraph 3, cf. Articles 15 and 17.

Below follows a detailed review of the case and a justification for the Data Protection Agency's decision.

2. Case presentation

It appears from the case that the complainant in July 2021 used OrderYOYO A/S's platform to order food from a local restaurant but interrupted the purchase before payment took place. Subsequently, the complainant received a series of marketing emails sent by OrderYOYO A/S on behalf of the restaurant in question.

On this basis, the complainant requested on July 7, 2021, via email, OrderYOYO A/S for access and subsequent deletion. The inquiry contained a number of other questions and comments, including regarding the handling of credit card data.

On July 9, 2021, OrderYOYO A/S confirmed receipt of the complainant's inquiry of July 7, 2021, and stated, among other things, that OrderYOYO A/S would strive to respond to the inquiry within 30 days, but that the company needed further information from the complainant to adequately respond to the

complainant's questions and comments related to the handling of credit card data.

On August 17, 2021, OrderYOYO A/S requested the complainant to confirm whether he wished to receive access to his information before or after it was deleted. On the same day, the complainant confirmed to OrderYOYO A/S that he wanted access to his information before deletion was carried out. OrderYOYO A/S then stated that the case would be forwarded to the company's GDPR officer. However, as the complainant's request for access and deletion was not answered, the complainant submitted a complaint to the Data Protection Agency on October 22, 2021.

2.1. Complainant's comments

The complainant has generally stated that OrderYOYO A/S has not responded to his request for access and subsequent deletion. Furthermore, the complainant has stated that OrderYOYO A/S, in the complainant's view, cannot continue to store his payment information with reference to the Accounting Act, considering that the complainant never completed a purchase via OrderYOYO A/S's platform.

2.2. OrderYOYO A/S's comments

Accura Law Firm (hereinafter "Accura") has stated on behalf of OrderYOYO A/S that the complainant's request for access was mistakenly not sent in July 2021. As a result, the complainant's request for deletion was also not met.

Accura further stated that OrderYOYO A/S immediately after receiving the complainant's access request began processing it. OrderYOYO A/S compiled the complainant's information in a zip file in order to meet the complainant's request for access by the end of July 2021. Upon the Data Protection Agency's inquiry on November 18, 2021, OrderYOYO A/S became aware that the response had not been sent to the complainant due to an error. Consequently, OrderYOYO A/S sent the response to the access request to the complainant on December 9, 2021.

Accura also stated that OrderYOYO A/S has initiated an internal investigation into how the error occurred in order to potentially update internal procedures to prevent similar errors from occurring again.

Accura has noted that OrderYOYO A/S did not reject the complainant's request for deletion, but since the response to the request for access was mistakenly not sent, this request was not met. Following the Data Protection Authority's inquiry and OrderYOYO A/S's subsequent response to the complainant's request for access dated December 9, 2021, OrderYOYO A/S has deleted the complainant's information that is not included in the current complaint case. The latter has been stated by Accura, indicating that OrderYOYO A/S can retain information with reference to Article 17, paragraph 3, letter e of the General Data Protection Regulation.

Accura has further stated that OrderYOYO A/S continues to retain the complainant's payment information, as OrderYOYO A/S is obligated to do so under Section 10, paragraph 1 of the Bookkeeping Act. In this regard, Accura has noted that despite the complainant canceling the purchase and the order amount therefore being 0 DKK, OrderYOYO A/S is charged a fee by its external payment service provider for each transaction initiated via OrderYOYO A/S's ordering platform. Accura has therefore stated that it is necessary for OrderYOYO A/S to retain the complainant's payment information in order to document the operational costs incurred by the complainant's transaction.

3. Justification for the Data Protection Authority's Decision

3.1. Request for Access and Deletion

It follows from Article 15, paragraph 1 of the General Data Protection Regulation that the data subject has the right to obtain confirmation from the data controller as to whether personal data concerning them is being processed, and if so, access to the personal data and the information specified in letters a-h of the provision. Furthermore, it follows from Article 15, paragraph 3, that the data controller shall provide a copy of the personal data being processed.

It follows from Article 17, paragraph 1 of the Regulation that the data subject has the right to have personal data concerning them erased by the data controller without undue delay, and the data controller is obliged to erase personal data without undue delay if one of the conditions in letters a-f of the provision applies.

It is stated in Article 12, paragraph 3 of the General Data Protection Regulation that the data controller shall inform the data subject without undue delay and in any event no later than one month after receiving the request of the measures taken in response to a request under Articles 15-22.

The Data Protection Authority assumes that the complainant's request of July 7, 2021, for access and deletion due to human error was only met on December 9, 2021.

Based on this, the Data Protection Authority finds that OrderYOYO A/S's processing of the complainant's request for access and deletion did not occur within the framework of Article 12, paragraph 3, in conjunction with Articles 15 and 17 of the General Data Protection Regulation. This gives the Authority reason to express criticism.

The Data Protection Authority has noted that OrderYOYO A/S has taken measures to ensure that future requests do not become subject to similar errors.

3.2. Retention of Payment Information

It follows from Article 17, paragraph 3, letter b of the General Data Protection Regulation that paragraph 1 does not apply to the extent that processing is necessary for compliance with a legal obligation which requires processing under EU law or the national law of the Member States to which the data controller is subject, or to perform a task carried out in the public interest or in the exercise of official authority vested in the data controller.

Accura has stated in the case that OrderYOYO A/S is obligated to retain the complainant's payment information under Section 10, paragraph 1 of the Bookkeeping Act. This provision states that the bookkeeping entity must retain accounting material securely for 5 years from the end of the financial year to which the material relates. The retention must be carried out in a manner that allows for independent and unambiguous retrieval of the relevant accounting material throughout the retention period.

As "accounting material," it is considered, among other things, vouchers and other documentation that is necessary documentation for transactions recorded in the bookkeeping, cf. Section 4, paragraph 1, number 3 of the Bookkeeping Act, cf. Section 3, paragraph 1, number 5.

In light of the aforementioned provisions, and since there is no information in the case indicating that OrderYOYO A/S processes information about the complainant that falls outside the scope of these provisions, the Data Protection Authority finds that there is no basis to override OrderYOYO A/S's assessment that it is still necessary to retain the complainant's payment information to comply with the legal obligations to which OrderYOYO A/S is subject under the Bookkeeping Act.

[1] Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).